



Shipping Contracts and Commercial Documents Act 1964

1964 CHAPTER 87

An Act to secure Her Majesty's jurisdiction against encroachment by certain foreign requirements in respect of the carriage of goods or passengers by sea and in respect of the production of documents and furnishing of information. [31st July 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If it appears to the Minister of Transport (in this section referred to as “the Minister”)—

- (a) that measures have been taken by or under the law of any foreign country for regulating or controlling the terms or conditions upon which goods or passengers may be carried by sea, or the terms or conditions of contracts or arrangements relating to such carriage; and
- (b) that those measures, in so far as they apply to things done or to be done outside the territorial jurisdiction of that country by persons carrying on business in the United Kingdom, constitute an infringement of the jurisdiction which, under international law, belongs to the United Kingdom,

Foreign
measures
affecting
United
Kingdom
shipping.

the Minister may by order direct that this section shall apply to those measures, either generally or in their application to such cases as may be specified in the order.

(2) Where an order is in force under subsection (1) of this section in relation to any measures—

- (a) it shall be the duty of every person in the United Kingdom who carries on a business consisting of or comprising the carriage of goods or passengers by sea to give notice to the Minister of any requirement or prohibition imposed or threatened to be imposed on him pursuant to those measures so far as this section applies to them, including any requirement to submit any contract or other document for approval thereunder; and
- (b) the Minister may give to any person in the United Kingdom who carries on such a business such directions for prohibiting compliance with any such requirement or prohibition as he considers proper for maintaining the jurisdiction of the United Kingdom.

(3) The power of the Minister to make orders under subsection (1) of this section shall include power to revoke an order by a subsequent order and shall be exercisable by statutory instrument; and any statutory instrument made by virtue of this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) Any directions to be given by the Minister under subsection (2) of this section may be either general or special, and may prohibit compliance with any requirement or prohibition either absolutely or in such cases or subject to such conditions as to consent or otherwise as may be specified in the directions; and general directions given under that subsection shall be published in such manner as appears to the Minister to be appropriate.

Directions
with respect
to documents
required by
foreign courts,
etc.

2.—(1) If it appears to any Minister of the Crown authorised to act under this section—

- (a) that any person in the United Kingdom has been or may be required to produce or furnish to any court, tribunal or authority of a foreign country any commercial document which is not within the territorial jurisdiction of that country, or any commercial information to be compiled from documents not within that jurisdiction; and
- (b) that the requirement constitutes or would constitute an infringement of the jurisdiction which, under international law, belongs to the United Kingdom,

that Minister may give directions to that person prohibiting him from complying with the requirement in question, or from complying with that requirement except to such extent or subject to such conditions as may be specified in the directions.

(2) The following Ministers are hereby authorised to act under this section, that is to say a Secretary of State, the President of

the Board of Trade, the Minister of Aviation, the Minister of Power and the Minister of Transport.

(3) For the purposes of this section any request or demand for the supply of a document or information which, pursuant to the requirement of any court, tribunal or authority of a foreign country, is addressed to a person in the United Kingdom shall be treated as a requirement to produce or furnish that document or information to that court, tribunal or authority, and directions under this section may be given accordingly for prohibiting compliance therewith.

(4) In this section "commercial document" and "commercial information" mean respectively a document or information relating to a business of any description and "document" includes any record or device by means of which material is recorded or stored.

3.—(1) Any person who wilfully fails to comply with section 1(2)(a) of this Act or contravenes any directions under this Act shall be liable on conviction on indictment to a fine which, in the case of an individual, shall not exceed £1,000.

(2) No proceedings for an offence punishable under this section shall be instituted in England and Wales or Northern Ireland except—

(a) in the case of a failure to comply with section 1(2)(a) of this Act, by the Minister of Transport; and

(b) in the case of a contravention of directions under this Act, by the Minister by whom those directions were given, or in either case with the consent of the Attorney General or, as the case may be, the Attorney General for Northern Ireland.

(3) Proceedings against any person for an offence punishable under this section may be taken before the appropriate court in the United Kingdom having jurisdiction in the place where that person is for the time being.

4.—(1) This Act may be cited as the Shipping Contracts and Commercial Documents Act 1964.

Short title
and extent.

(2) It is hereby declared that this Act extends to Northern Ireland.

(3) Her Majesty may by Order in Council direct that this Act shall extend with such exceptions, adaptations and modifications, if any, as may be specified in the Order to any territory outside the United Kingdom, being a territory for the international relations of which Her Majesty's Government in the United Kingdom are responsible.